

Court No. - 39

Case :- WRIT - C No. - 17811 of 2024

Petitioner :- Shiv Shankar Pandey

Respondent :- State Of U.P And 6 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Donadi Ramesh,J.

1. Heard Shri Bidhan Chandra Rai, learned counsel for the petitioner, Shri Narendra Kumar Tiwari, learned counsel for respondent nos.3 to 6, Shri P.K. Tripathi, learned counsel for private respondent no.7 and Shri K.K. Singh, learned Standing Counsel for the State-respondents.

2. At present, parties are at variance as to the exact location of new power line being laid by respondent nos.3 to 6 for the benefit of respondent no.7 and other residents of the village.

3. According to the petitioner, connection of respondent no.7 and others is being energized from the power line provided to the petitioner i.e. from the pole standing on his private property. The petitioner is also opposed to the new electric pole being erected over his property and is also opposed to electric line connection being provided to the private respondent from over his land.

4. On the other hand, the private respondent would contend that the present petitioner is obstructing a public work. The private respondent would submit that electricity connection is urgently required by him and other residents of the village and that public work may not be stalled.

5. Having heard learned counsel for the parties, we find in terms of

Clause 4.5 (d) of the Electricity Supply Code 2005, any person over whose land electricity supply line may be laid, has a right to object to the same. Then Clause 3 of the Works of Licensees Rules, 2006 allows the District Magistrate or Commissioner of Police or other authorized officer to deal with such situation and provide proper resolution, such that neither the rights of a citizen over his land may be violated nor any public work may be unduly stalled.

6. In face of the objection raised by the petitioner, we provide subject to the petitioner filing appropriate application under Clause 3 of the Works of Licensees Rules, 2006 within a period of one week from today before respondent no.2, supported by his personal affidavit annexing thereto all relevant documents and photographs on which he may seek to rely, the said respondent may pass appropriate order on the same after hearing all necessary parties including respondent nos.3 to 7 after calling for necessary reports. Such exercise may be completed within a period of three weeks from the date of compliance shown by the petitioner.

7. Till such decision is made, parties to maintain status quo as on date.

8. Accordingly, the present writ petition stands disposed of.

Order Date :- 23.5.2024

rkg

(Donadi Ramesh, J.) (S.D. Singh, J.)